

		<i>Wholesale Corp.</i> (2015) 238 Cal.App.4th 65, 77-78, as support for paying the employer's payroll taxes from the gross settlement amount. <i>Cifuentes</i> addresses withholding an employee's taxes from settlement funds, not an employer's taxes. <i>See id.</i> at 77 ("Costco's potential exposure for failing to withhold the payroll taxes outweighed the inconvenience to Cifuentes of seeking a refund for the excess withholding"); <i>id.</i> at 80 ("The law . . . required Costco to withhold payroll taxes from the award of lost wages. Costco complied with this requirement and satisfied the judgment by paying Cifuentes the remaining balance due. His remedy was to seek refunds for any excess withholding, not further damages from Costco"). Plaintiff should provide on point legal authority supporting payment of the employer's taxes from the gross settlement amount or the parties should revise the settlement agreement to state that defendant will pay the employer's taxes outside of the gross settlement amount. 2. The word "amended" should be removed from the title of the notice. 3. The last three sentences of the second paragraph of section 4(2) of the notice should be removed. 4. The last sentence of the first paragraph of the exclusion form should be removed, as this settlement does not settle a PAGA claim(s). 5. The last sentence in the second blue box on the exclusion form should be removed, as this settlement does not settle a PAGA claim(s). The hearing on plaintiff's motion for preliminary approval of a class action settlement is continued to <u>October 1, 2026 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. <i>See also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement is directed, rather than "amended settlement agreement," to streamline the court's review.</u> The parties shall also provide redlined copies of any revised documents. Plaintiff is ordered to give notice and to file a proof of service. No earlier hearing date is available for this motion.
5	Cortina v. R & D Metal Fabricators Inc. 2025-01452225	<u>Plaintiff Alvaro Cortina's Motion to Seal</u> Plaintiff Alvaro Cortina moves to seal a settlement agreement between plaintiff and defendant R&D Metal Fabricators, which plaintiff lodged conditionally under seal in support of his motion approval of a PAGA settlement. For the following reasons, plaintiff's motion to seal is denied.

Unless confidentiality is required by law, court records are presumed to be open. Cal. R. Ct. 2.550(c). A record must not be filed under seal without a court order. Cal. R. Ct. 2.551(a). The court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties. *Id.*

A party requesting that a court record be filed under seal “must file a motion or an application for an order sealing the record.” Cal. R. Ct. 2.551(b)(1). “The motion or application must be accompanied by a memorandum and a declaration containing facts sufficient to justify the sealing.” *Id.*

A court may order a record be filed under seal only if the court expressly finds facts that establish: (1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest. Cal. R. Ct. 2.550(d).

An order sealing a record must specifically state the facts that support the findings, and direct the sealing of only those documents and pages, or, if reasonably practicable, portions of those documents and pages, that contain the material that needs to be placed under seal. Cal. R. Ct. 2.550(e)(1). All other portions of each document or page must be included in the public file. *Id.*

Plaintiff’s counsel’s declaration accompanying the motion to seal states that the settlement agreement should be sealed because “[t]he parties agreed, as a material term of the individual settlement, that this agreement and all information pertaining to it remain confidential.” Solmer Declaration (ROA 72) ¶ 3.

Counsel’s declaration does not state facts sufficient to justify sealing the settlement agreement. As an initial matter, as stated above, a court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties. Cal. R. Ct. 2.551(a); *see also McNair v. National Collegiate Athletic Ass’n* (2015) 234 Cal.App.4th 25, 36 (“the mere agreement of the parties alone is insufficient to constitute an overriding interest to justify sealing the documents”). In addition, a settlement agreement that has a confidentiality provision cannot be sealed unless there is a showing of serious injury which would result from public disclosure. *Universal City Studios, Inc. v. Superior Court* (2003) 110 Cal.App.4th 1273, 1281-82. Plaintiff has not submitted any evidence that serious injury would result from public disclosure of the settlement agreement.

Plaintiff’s motion does not provide a sufficient evidentiary basis for the court to make the required findings to seal the settlement agreement or to conclude that the settlement agreement filed in support of plaintiff’s motion for approval of a PGA settlement should be shielded from public view. *See, e.g., Overstock.com, Inc. v. Goldman Sachs Group, Inc.* (2014) 231 Cal.App.4th 471, 487 (“If

		the trial court fails to make the required findings, the order is deficient and cannot support sealing”). Clerk to give notice.
6	Cruz v. Pacific Life Insurance Company 2025-01517146	Off calendar.
7	Davis v. Insight Psychology and Addiction, Inc. 2023-01319920	<u>Plaintiff’s Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff’s motion for preliminary approval of an \$355,000 class action and PAGA settlement. In the October 16, 2025 order (ROA 135), the court stated that the “Release by Participating Class Members” provision in paragraph 5.2 was overbroad. The court stated that the release of the class members’ claims must be fairly tailored to the claims that were or reasonably could have been asserted in the lawsuit based on the facts alleged in the operative complaint. In the January 29, 2026 order (ROA 147), the court stated that the “Release by Participating Class Members” in the amendment to the settlement agreement remained overbroad. The court stated that, in the second sentence, the phrase beginning with “and all other claims” to the end of the sentence should be removed. Plaintiff’s counsel states that defendant has declined to make the revision to the “Release by Participating Class Members” ordered by the court in the January 29, 2026 order and has otherwise not cooperated with plaintiff’s efforts to prepare the supplemental filings. Supp. Manus Decl. (ROA 158) ¶¶ 3-8. In addition to the above, the parties have not submitted a revision of paragraph 7.8.4 as ordered in the January 29, 2026 order (ROA 147, No. 2) nor have they submitted a revised notice (ROA 147, Nos. 5, 6) or a revised proposed order (ROA 147, Nos. 7, 8). Under these circumstances, the court has no alternative but to deny without prejudice plaintiff’s motion for preliminary approval. A status conference is scheduled for <u>August 27, 2026 at 9:00 a.m.</u> in Department CX105. The parties are ordered to file a joint status conference statement at least 5 court days before the hearing. If plaintiff files another motion for preliminary approval before August 27, 2026, the court may vacate the status conference. If the case remains unresolved as of August 27, 2026, the parties’ joint status conference statement should set forth, <i>inter alia</i>, their proposed schedule(s) for briefing and hearing the class certification motion. Plaintiff to give notice.
8	Gershfeld v. Home Depot U.S.A., Inc., et al. 2024-01409225	Off calendar.